

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air  
Solutions, STEPHANIE LANIER, and  
SHANE SABLITSKY,

Defendants.

C.A. No. 2:25-cv-00405-RMG-MGB

**DEFENDANTS' RESPONSE TO PLAINTIFF'S OBJECTIONS TO THE MAGISTRATE  
JUDGE'S ORDERS**

Defendants, by and through their undersigned counsel, submit this Response to Plaintiff's Objections to Magistrate Judge's Orders (ECF Nos. 192 & 194). For the reasons set forth below, Plaintiff's Objections have no basis in law and should be overruled.

As an initial matter, Plaintiff's objections to Magistrate Judge Baker's October 21, 2025, Order (ECF No. 194) applies relating to Plaintiff's discovery dispute with a third party, Apple, Inc. Defendants take no position on that dispute.

**A. Judge Baker's October 20, 2025, Ruling is Not Clearly Erroneous or Contrary to Law.**

Plaintiff's Objections to Judge Baker's October 20, 2025, Order are untimely and should be overruled on this basis alone. On October 20, 2025, Judge Baker entered an order on one of Plaintiff's pending Motions to Compel (ECF No. 105), in which she ruled, in relevant part, that Plaintiff cannot compel non-party Hunt Law LLC to respond to a subpoena because the information sought was not relevant to her claims and Plaintiff failed to demonstrate why the

information sought could not be obtained from Defendants.<sup>1</sup> On November 14, 2025, approximately 25 days after the Court's Order, Plaintiff lodged her Objections. Objections to a Magistrate Judge's non-dispositive order must be made within 14 days after being served with a copy of the Order. Here, Plaintiff served her objections over ten days too late. As such, her Objections should be overruled.<sup>2</sup>

In addition, Plaintiff's Objections are facially frivolous and should be overruled on the merits. As Plaintiff correctly points out, Judge Baker's Order should be modified or set aside only if it is clearly erroneous or contrary to law. Fed. R. Civ. P. 72(a). It was not.

In fact, *enforcing Plaintiff's subpoena would be clearly erroneous*. Plaintiff seeks to subpoena all communications between Hunt Law and defense counsel because she believes that defense counsel and/or Curtiss Wright paid Plaintiff's former attorney to drop this case.<sup>3</sup> See ECF No. 196. There is absolutely no support whatsoever for this conspiracy theory. Judge Baker correctly found that "the non-privileged communications between Bonnie Hunt and/or Hunt Law LLC and Defendants and/or Defense counsel appear to have absolutely no bearing on the claims set forth in Plaintiff's Fourth Amended Complaint." (ECF No. 192 at 6.) Rule 26 defines that scope of discovery as that relevant to "any party's claim or defense." Fed. R. Civ. P. 26(b)(1). There is no claim in this lawsuit even tangentially related to the subject matter of Plaintiff's

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<sup>1</sup> Judge Baker's October 20 Order addressed other issues as well, but Plaintiff failed to lodge any objections to those portions of the Order. As such, those portions of the Order should stand without objection.

<sup>2</sup> To the extent Plaintiff attempts to argue that she did not receive timely notice of the October 20, 2025 Order from the Court, it is clear from subsequent filings by Plaintiff that she received the Order no later than October 27. See Plaintiff's Motion for Recusal, ECF No. 199.

<sup>3</sup> Plaintiff's Notices of Subpoena to Bonnie Hunt and Hunt Law inaccurately state that they include Schedule A's showing the document requests. Plaintiff has repeated this on three separate occasions, so it is unclear whether these are intentionally omitted. See ECF Nos. 134, 164, 171. Defendants are only aware of the documents Plaintiff seeks through contemporaneous filings.

subpoena to Bonnie Hunt. While Judge Cherry may have authorized Plaintiff to send subpoenas to third parties by allowing her to request the subpoenas from the Court, the Court did not in any way authorize Plaintiff's enforcement of that subpoena. Because the information requested by Plaintiff in her subpoena fell outside the scope of Rule 26, Judge Baker's Order denying Plaintiff's Motion to enforce that subpoena was not clearly erroneous – it was consistent with the scope of permissible discovery in Rule 26.

Judge Baker also rules that "Plaintiff has failed to demonstrate why she cannot obtain the requested materials from Defendants." (ECF No. 192 at 6.) In fact, on October 16, 2025, Defendants produced to Plaintiff all communications between defense counsel and Bonnie Hunt.<sup>4</sup> Therefore, Plaintiff's Objections regarding this subpoena were moot when filed. As such, Plaintiff's Objections should be overruled and Judge Baker's Order affirmed.

**B. Defendants' Oppose Plaintiff's Request to Have All Discovery Disputes Reviewed by the District Judge or Reassigned.**

In her Objections, Plaintiff seeks to have all discovery disputes reviewed by the District Judge or reassigned to a different Magistrate Judge. She fails to cite any authority to support this request and, though Defendants are confident in any District Judge or Magistrate Judge's ability to rule on Plaintiff's discovery motions, the practical reality is that Plaintiff's request is not feasible given the volume of motions that she files. As of November 25, 2025, there have been 227 docket entries in a case that is less than a year old, including over 20 different motions, not including responses and replies, filed by Plaintiff in approximately the last two months. Having all discovery disputes reviewed by the district judge would waste judicial resources and further delay this

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<sup>4</sup> On October 30, the Court requested that Defendants provide Plaintiff with all communications between Defense Counsel and Bonnie Hunt or provide Plaintiff with an affidavit that such communications do not exist. See ECF 204. Defendants had already produced all of those communications to Plaintiff prior to that Order.

litigation. It would additionally be prejudicial to Defendants, allowing Plaintiff a second bite at the apple because she is merely unsatisfied with prior judicial review and force Defendants to unnecessarily expend financial resources relitigating resolved discovery issues.

Likewise, Defendants oppose reassigning this case to another magistrate judge because the only basis for Plaintiff's request is that Judge Baker has ruled against her. Plaintiff stated as much in her Motion for Recusal where her chief complaint is that contested issues were not being resolved in her favor. (ECF No. 199.) Defendants are aware that Plaintiff has filed similar motions in other lawsuits, which Plaintiff had also referenced in her Motion for Recusal, stating, for example:

"This case also fits into a broader and troubling pattern. In multiple separate matters involving [an attorney and judge in a state law case], Plaintiff has encountered similar irregularities in judicial handling and denials of procedural fairness. Each of these judges demonstrated conduct that has been or will be the subject of formal judicial misconduct complaints filed with the appropriate disciplinary authorities."

ECF No. 199 §4, ¶6 (names and case information omitted for brevity). Even if this case is reassigned to a different Magistrate Judge, once Plaintiff receives a ruling that is not in her favor, she will allege bias and ask for the case to be reassigned again. Therefore, Defendants respectfully ask the Court to overrule Plaintiff's Objections in their entirety.

Respectfully submitted this 26th day of November, 2025.

s/ Joseph V. Valenza

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4915-7561-3052, v. 1

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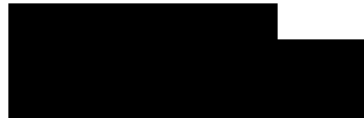
Defendants.

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**CERTIFICATE OF SERVICE**

The undersigned certifies that on November 26, 2025, a copy of the foregoing **DEFENDANTS' RESPONSE TO PLAINTIFF'S OBJECTIONS TO THE MAGISTRATE JUDGE'S ORDERS** has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson



***Pro Se Plaintiff***

s/ Joseph V. Valenza

Joseph V. Valenza

Dated: November 26, 2025